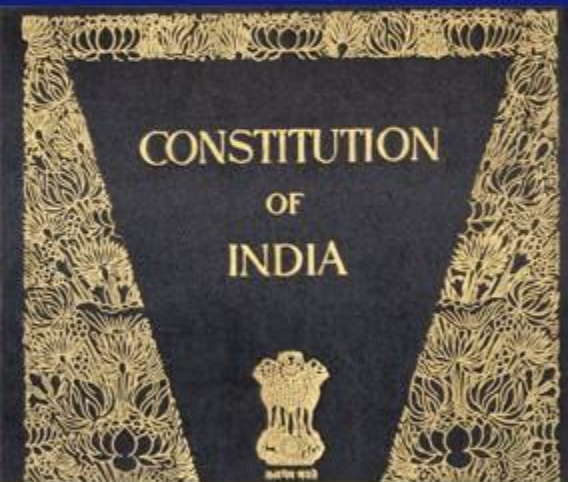


INDIAN POLITY



MODULE - 9

**INDIAN INDEPENDENCE
ACT OF 1947**

INDIAN POLITY

INDIAN INDEPENDENCE ACT OF 1947

BACKGROUND OF THE ACT



1 On February 20, 1947, **British Prime Minister Clement Atlee** declared that the British rule in India would end by June 30, 1948, after which the power would be transferred to responsible Indian hands.

2 Again on **June 3rd 1947**, the British Government made it clear that any Constitution framed by Constituent Assembly of India **cannot apply to the parts of the country which were unwilling to accept it.**

3 On the same day, the partition plan was put forward by Lord Mountbatten, which is known as the **Mountbatten Plan**. Giving effect to this plan the British enacted the Indian Independence Act.

INDIAN INDEPENDENCE ACT OF 1947

FEATURES OF THE ACT



Migrants crossing into Pakistan during Partition

- 1** It ended the British Rule in India and declared India as independent and sovereign State from August 15th 1947.
- 2** It provided for the creation of two independent dominions of India and Pakistan with the right to secede from the British Commonwealth.
- 3** It abolished the office of viceroy and provided for each dominion, a Governor General.
- 4** The Authority of British Crown over the princely States ceased and they were free to join either India or Pakistan.

INDIAN INDEPENDENCE ACT OF 1947

FEATURES OF THE ACT



- 5 His Majesty's Government have no responsibility with respect to the Government of India and Pakistan.
- 6 It created two constituent assemblies for the countries of India and Pakistan to frame and adopt any Constitution for the respected nations and to repeal any Act of the British Parliament, including the Indian Independence Act.
- 7 It abolished the office of the Secretary of the State for India and transferred his powers to the Secretary of Commonwealth Affairs.

INDIAN INDEPENDENCE ACT OF 1947

FEATURES OF THE ACT

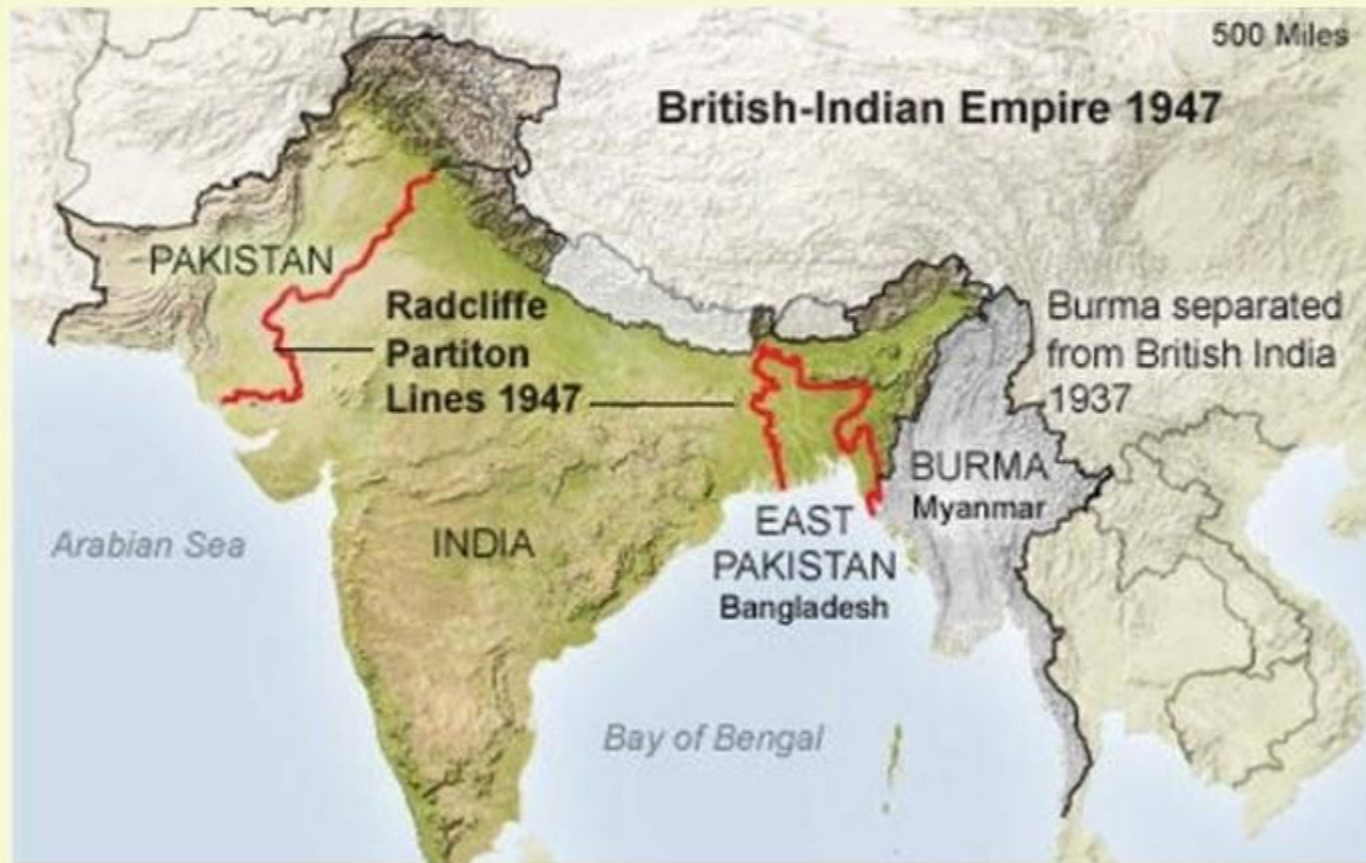


8 It provided for the partition of Punjab and Bengal and set boundary commission to demarcate the boundaries between them.

9 The boundaries between the two dominion States were determined by boundary Commission which was headed by **Sir Cyril Radcliffe**.

10 It provided for the **Governance of each of the dominions and provinces by the Government of India Act, 1935** till the new Constitutions were framed.

THE “CURIOUS CASE” OF CYRIL RADCLIFFE!



The Radcliffe Line drawn by Sir Cyril Radcliffe.

INDIAN INDEPENDENCE ACT OF 1947

FEATURES OF THE ACT



Imperial Crown of India

- 11** It deprived the British Monarch of his right to **Veto Bills** or ask for reservation of certain bills for his approval.
- 12** It designated the **Governor General of India and Provincial Governors** as the **Constitutional heads** of the State.
- 13** They were made to act on the advice of the respective council of ministers in all matters.
- 14** It dropped the title of the Emperor of India from royal titles of the King of England.

INDIAN INDEPENDENCE ACT OF 1947

ANALYSIS OF THE ACT

- 1** By this Act the British Crown ceased to hold any authority over the Indian and Pakistan States.
- 2** Neither India nor Pakistan derived its Constitutional authority from the British Crown i.e. **the crown was no longer to be the source of authority.**
- 3** The Governor General and Provincial Governors were made as Constitutional heads and their **actions were completely made responsible to the Indian Constituent Assembly.**
- 4** The Governor General and the Provincial Governors was to act with the advice of the Council of Minister having the confidence of the dominions legislatures or the provincial legislatures as the case might be and the **words “in his discretion” and “individual judgment” were erased from the previous Acts of the British Government.**
- 5** Both the Governor Generals and Provincial Governors **lost the extraordinary powers of passing ordinances, vetoing bills or reserving any bill for the consideration of the crown.**

INDIAN INDEPENDENCE ACT OF 1947



ANALYSIS OF THE ACT

- 6 From the date of August 14th 1947, it was the Constituent Assembly which was to perform the **dual role of being a legislative body as well as constituent body**.
- 7 That is, the same Constituent Assembly of one dominion was to function also as the Central Legislature.
- 8 The **Sovereignty of the dominion legislature was complete** and no sanction of the Governor General would henceforth be required to legislate on any matter.

THE AFTERMATH OF INDEPENDENCE

1 Jinnah left for Karachi on August 7, 1947. Here the Constituent Assembly of Pakistan met on August 11, 1947 and elected him the President.



Lord Mountbatten graciously felicitated Jinnah

2 On August 14th Jinnah was sworn in as the Governor General of Pakistan.



Oath-taking ceremony of Quaid-e-Azam Muhammad Ali Jinnah as Governor General of Pakistan August 1947.

THE AFTERMATH OF INDEPENDENCE



Nehru gave the “Tryst with Destiny” speech on August 15, 1947

- 3** At the stroke of midnight of 14th and 15th August, 1947, India and Pakistan came into existence.
- 4** The Indian Constituent assembly appointed **Lord Mountbatten as the Governor General of Indian Dominion.**
- 5** In the morning of August 15, 1947, a new cabinet headed by Jawaharlal Nehru was sworn in.
- 6** The Constituent Assembly of India became the Parliament of the Indian Dominion.

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